

Council Meeting
June 26, 2019
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The Claremont City Council held a meeting on Wednesday, June 26, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Absent:

Assistant Mayor Allen Damren

Also present:

John MacLean, Interim City Manager

AGENDA CHANGES

None

MAYOR’S NOTES

- She talked about the state’s budget. If it is accepted by the legislators, it will move on to the Governor’s office. There is over \$330,000 in it for Claremont for unrestricted municipal aid to be paid out in October. Additionally, there are three wastewater projects at approximately \$111,000 for the next four years. There is education funding that would be approximately \$1.2 million the first year and over \$4 million in the second year of the biennium.
- Thanked businesses for improvements to their properties. She talked to a couple of real estate agents and was told properties are moving quickly now.

Mr. O’Hearne said Friday the County Delegation will vote on the County budget.

- In May is the National Police Appreciation Week. There was an oversight and this was not acknowledged by the Council. She read a letter of appreciation to the Police Department and presented it to Police Chief Mark Chase.
- The next Council meeting will begin at 5:30 p.m. in order to have enough time to do the Councilor candidate interview process.

CITY MANAGER'S REPORT

- July 4th celebration will be held in Monadnock Park starting at 6 p.m. There will be vendors with food, drinks, and novelties; Last Kid Picked band; fireworks at 9:30 p.m. This is sponsored by McGee Toyota. There will be a donation opportunity for \$1 to go toward next year's event. Rain date is July 5th.
- JSL (Junior Sports League) property received no bids. There will be more conversation and the City will come back to the Council with other ideas in the future.
- Merit Plan adjustment will come forward for first reading. Personnel Advisory Board (PAB) met yesterday. PAB reviewed the matter and understood the need to make adjustments. There will be a first reading of the ordinance at the next meeting and then there will be two more readings.
- Health insurance was discussed at the June 12th meeting. The City would like to go back to HealthTrust for Clerical Union and Merit Plan employees which would bring all employees back to HealthTrust. Anticipated savings of about \$185,000 was never realized because the City was not able to get all unions over to NHIT (NH Interlocal Trust). He will ask the Council to waive the request for qualifications later in this meeting.
- Talked about the Opera House roof proposal. At the next meeting, the City will request to sole source to Melanson as this is a tricky project and they have worked with us before. Money has been encumbered for the flat roof and the copper coping wall. We won't do the tower at this time. That will be left for the LCHIP (Land and Heritage Community Investment Program) project. They will be working on the area that has been leaking onto the stage. Melanson can put this on their schedule for October.
- The air handlers on the flat roof are over 25 years old. One is not working. There are a lot of problems with the air handling in the Opera House. We are looking at options either to replace the units or replace some parts. They were originally put in place by a helicopter. We hope to have information for the next meeting.
- Regarding the Main Street Project, Senator Shaheen helped us get a \$500,000 appropriation for that project and the project management of the Planning and Development staff and the Public Works staff are doing an excellent job. East Street and Rail Trail Project is a TAP project which is administered by Planning and Development Project Manager Tom Krebs.

Vic St. Pierre, Public Works Director talked about the Main Street Project. Senator Shaheen helped Claremont get \$500,000 for that project. It has taken 11 years to get to this point. Main Street had a lot of underground (water & sewer) work done. There is a lot more traffic using Main Street instead of North Street. There are a few more items to do. Regarding East Street, Public Works took money from the FEMA account to do the paving. They did water, sewer and drainage. Contractors will do the sidewalks the week of July 7th. Construction: Belding, North to Hanover Streets, Safe Routes to Schools Project, granite curbing and sidewalks; Public Works will repave afterward. North & Main Streets Project still being planned. Planning and Development Department working on right-of-way issues. Regarding paving, Public Works has the budget now, but this is not the time to go out for bids. Contractors are very busy.

Regarding the Main Street Project, Mr. O'Hearne asked about replacing a telephone pole that has not been done yet. Mr. MacLean said the City can look into that.

Mr. Koloski said a citizen asked about reaching out to utilities regarding abandoned poles. Mr. MacLean said to let his office know where they are, and the City can look into it.

Mr. O'Hearne said a resident at 103 Main Street said during rain storms, the water comes by their steps. The resident was referred to Public Works. Mr. O'Hearne asked Mr. St. Pierre to review.

CITIZEN'S FORUM

Walt Stapleton, Ward 3 resident and House Representative, said regarding the County budget, the Committee recommended an increase of 2.5%.

OLD BUSINESS

City Manager Search Update

Mr. Stone said the City Manager Search Committee is looking at five candidates. The Committee will agree on essay questions. They will interview the candidates in the next 2-3 weeks and expect to have three candidates for the Council to interview.

NEW BUSINESS

Accept \$3,600 OHRV Enforcement Grant

A motion was made by Ms. Kier and seconded by Mr. O'Hearne to authorize the City Manager, or his designees, to accept and expend a grant in the amount of three thousand, six hundred dollars (\$3,600.00) and to enter into an agreement with the State of New Hampshire Fish and Game Department for the purpose of Off Highway Recreational Vehicle enforcement by the Claremont Police Department.

Police Chief Mark Chase said the Police Department has received this grant for the last 10 or 11 years. It provides the Claremont Police Department patrol time on the trails.

Voice vote: motion carried 7-0.

Transfer Funds to the Capital Reserve Fund for Voter Equipment

**A motion was made by Mr. O'Hearne and seconded by Mr. Koloski that
WHEREAS in June of 2017 the City Council established a Voter Equipment Capital Reserve Fund (the Fund) using already appropriated funds to begin saving for the future replacement of voter equipment and;**

WHEREAS the City of Claremont has unexpended funds remaining in the FY 2019 Election budget;

The Claremont City Council hereby authorizes the transfer of \$2,500.00 to be transferred to the Fund and hereby authorizes the City Manager or his designees to execute all documents and undertake all actions as may be required to implement this Motion.

Voice vote: motion carried 7-0.

Filling Vacant Council Seat Discussion

Interview and Selection of Candidate to Fill Vacant At-Large Councilor Seat Process 9/21/17

- Candidates will alternate answering each question first
- Candidates make an Opening Statement
- Questions (these will not be made public until they are read at the interview)
 - 1. How have you personally invested yourself in Claremont?
 - 2. What motivates you to serve as a City Councilor?
 - 3. What do you hope to accomplish in the next three months if you are chosen as a Councilor?
 - 4. What is there about Claremont that makes you proud to live here?
- Candidates make a Closing Statement
- Council deliberates and then votes
- Selected candidate will be sworn in by Gwen Melcher

Councilors discussed the process to fill the vacant At-Large Councilor seat.

- There will be two rounds of voting. If there is a clear winner on the first round, then that person will be chosen. If there is no majority, then there will be a runoff.
- Candidates will be interviewed individually.
- Each candidate will have 2 minutes for opening and closing statements.
- Questions will be:
 - 1. How have you personally invested yourself in Claremont?
 - 2. What motivates you to serve as a City Councilor?
 - 3. What do you feel is one of the City's biggest challenges?
 - 4. What committees do you see yourself participating in as a Councilor, and why?
- Candidates will be allowed two minutes to answer each question.
- There will be no redirect.

Policy Committee Recommendation – RSA 354-A, State Commission for Human Rights

Mayor Lovett submitted the following memo on behalf of the Policy Committee.

Members of the City Council:

In reviewing the recommendations of the Governor’s Advisory Council on Diversity and Inclusion, it has come to our attention that the NH Legislature amended RSA 354-A in July 2018 to expressly prohibit discrimination based on gender identity. In taking this action, the legislature declared that “practices of discrimination against any of its inhabitants because of age, sex, *gender identity*, race, creed, color, marital status, familial status, physical or mental disability or national origin are a matter of state concern, that such discrimination not only threatens the rights and proper privileges of its inhabitants but menaces the institutions and foundation of a free democratic state and threatens the peace, order, health, safety and general welfare of the state and its inhabitants.”

Consistent with this declaration, the Governor’s Council recommended that all statutes, ordinances, regulations and policies that reference identity-based classes should be amended to include gender identity as an express protected class. In order to be compliant with the State’s Law Against Discrimination, it is the Policy Committee’s recommendation that the following sections be amended in the Claremont Municipal Code to include all of the aforementioned protected classes:

- Article I, Division 6, Section 2-102 – Personnel Advisory Board, powers and duties
- Article V, Section 2-385, subsection a – Merit System, Application and appointment, nondiscrimination

It is further recommended that the Council direct Interim City Manager MacLean to ensure that all applicable operational policies and regulations accurately reflect the protected classes identified in RSA 354-A as amended in July 2018.

A motion was made by Mr. Stone and seconded by Ms. Kier to update the two sections as listed in Mayor Lovett’s memo (Article I, Division 6, Section 2-102 – Personnel Advisory Board, powers and duties; and Article V, Section 2-385, subsection a – Merit System,

Application and appointment, nondiscrimination) in accordance with the amendment to RSA 354-A as amended in July 2018.

Voice vote: motion carried 7-0.

A motion was made by Ms. Kier and seconded by Mr. Stone to recommend that the Council direct the City Manager to ensure that all applicable operational policies and regulations accurately reflect the protected classes identified in RSA 354-A as amended in July 2018.

Voice vote: motion carried 7-0.

Mr. MacLean requested Council suspend its rules in order to discuss an item not on the agenda.

A motion was made by Mr. Koloski and seconded by Ms. Kier to suspend Council Rule 48.

Mr. O'Hearne said he doesn't want to suspend the Rules because he has questions about this topic that doesn't believe the City Manager can answer tonight.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - no

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 5-2.

A motion was made by Mr. Pope and seconded by Ms. Kier to authorize the City Manager or his designees to negotiate, execute a contract for employee health insurance for AFSME Clerical Union and Merit Plan employees, to be provided by NH Health Trust to take effect January 1, 2020, in accordance with the existing contractual provisions in place for all other City employees eligible for this benefit.

Mr. MacLean said the City has little choice in this matter. It costs the City more money to remain with NHIT (NH Interlocal Trust). The union contracts have to negotiate the health insurance carrier. Only Merit Plan & Clerical Union employees were compelled to go to NHIT. The City was not successful negotiating to move the other unions to NHIT. Since then, we have been able to get better rates with NH HealthTrust. HealthTrust is asking the City to make a choice quickly about switching. The rate will be set in the fall. The City has to make its determination before October.

Mr. O'Hearne wanted to make it clear that it was not the Clerical Union's choice to go with NHIT.

Mr. MacLean said that he had stated that the Clerical Unit did not want to change to NHIT, but was compelled to go and the non-union employees (Merit Plan) were also compelled to change to NHIT.

Voice vote: motion carried 6-1, with Mr. O’Hearne voting no.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett asked Councilors about having only one meeting in August. Councilors agreed to meet on August 14 and to not meet on August 28. However, Mr. Stone suggested there may need to be a special meeting for the City Manager search. Hopefully, it will be done in July.

Mr. Koloski would like to look at shopping carts not being allowed to leave the store property. Chief Chase said that many people use the carts and take them back. If an officer sees someone pushing a cart with groceries, they won’t be stopped. The carts are not supposed to leave the grounds, but it is a difficult situation. He doesn’t know what the Policy Committee could add to this; technically, it is theft. It would be difficult to enforce not allowing the carts to leave the property. If residents see the carts, they can contact Police Dispatch and Dispatch will take care of notifying the stores.

Mr. Stone would like to discuss a dog park. Mayor Lovett said there is money for one on the books. Mr. Koloski said previously he was told someone would need to come forward who would be interested in taking the responsibility for this. Mr. MacLean said dog parks are very controversial. Mr. MacLean said he and Finance Director Mary Walter will make a report to the Council on the dog park funds and all the other reserve accounts that are being held by the City. Mayor Lovett said to put this on the second meeting in July.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:18 p.m., a motion was made by Mr. O’Hearne and seconded by Mr. Pope to adjourn.

Voice vote: motion carried 7-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council